TOWNSHIP OF LINCOLN
CLARE COUNTY, P.O. BOX 239
LAKE GEORGE, MI 48633

Supervisor, Dennis Zimmerman
Clerk, Carol Majewski
Treasurer, Maggie Carey
Trustee, Jerry Bridges
Trustee, Mike Tobin

**Lincoln Township Zoning Board of Appeals**
**Regular Meeting**
**Wednesday, March 11, 2015**

The meeting was called to order by Chair Godau at 7:07 pm.

**Roll Call:**
**Present –** Chair Godau, Liaison Bridges, Engelhardt, Alternate McCaslin, Alternate Smith, Zoning Administrator Carey, Recording Secretary Sherrod
**Absent –** Secretary Szczepanski, excused; Marshall Swanson, excused; Building Inspector Mantei
**Public** – 4

**Approval of Minutes:**
Regular Meeting minutes of November 19, 2014 – It was moved by Bridges and seconded by Smith to accept the minutes as presented. Motion passed.

**Conflict of Interest Statement (Declare and Cite)**: No conflict of interest was stated.

**General Comments by Chair**: Chair Godau advised that Lincoln Township is a zoned township, of only six in Clare County. It is important for people who move into the township to understand that Lincoln is zoned and how the boards are selected or elected and the structure under which those boards operate. The township board is elected and serves in the legislative capacity. The planning commission is appointed by the board and serves as the executive body.
He explained that the ZBA is not a political structure, but one of appointment as well, and serves as the judicial body. He went on to explain about what a variance involves and how the zoning administrator deals with the steps of zoning permits,

building permits, and then the process in which a permit is denied. He also explained the roles of the zoning administrator and the building inspector. Once an appeal is made to the ZBA and denied or approved, any aggrieved person can appeal to the Circuit Court.

**Purpose**: Chair Godau read the following information: This is a variance request by Lorraine Perry for her property, #18-010-330-001-10, located at 1490 Bungo Trail, Lake George, Michigan, for the construction of awnings/roofs covering existing decks which violates the existing Township Zoning Ordinance pertaining to adding structures to existing non-conforming structures. Lorraine Perry's structure is a non-conforming structure due to its failure to meet the minimum required setbacks from both roads. The notice of this variance was published in the *Clare County Cleaver* on February 19, 2015, in accordance with the township zoning ordinances. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the township's website in the calendar of events.

**Brief Explanation of the Rules**: Chair Godau explained that variance requests are submitted by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; 5. Minimum Variance Necessary

**Zoning Administrator Statement**:
See Attachment #1

**Petitioner's Statement**:
Mrs. Perry asked how the specified awnings are defined as non-conforming as the radius of the building has not changed. She is not obstructing anyone's views. She needs the awnings for safety.

Answer from Administrator Carey: it is adding to a non-conforming structure; it doesn't mean that it is increasing the non-conformity.

Mrs. Perry cited Page 56, Section 1512, Paragraph 3a, but Administrator Carey said that this portion does not apply in this case.

Carey and Bridges clarified that by her adding the awnings without increasing the size, she is still adding to a non-conforming structure. She then presented a doctor's letter concerning the need for a ramp on her deck.

Godau explained that everyone needs to guard their own safety and the ordinances can't be changed on an individual's request to enhance their safety if they can use other means like salt to protect their structures. The bottom line is that the ordinance states that one cannot add a structure to a non-conforming structure.

Question from Smith: did you hire a licensed contractor to put up the awnings? No, Mrs. Perry did it herself with the help of friends. Smith also wanted to clarify that she mentioned replacing areas that have rotted and make sure that she was not changing the size of the structures concerned in doing so.

Bridges explained to her the need to have proper inspections before and during the construction to ensure her safety and the future safety of the structure. The specific issue before this board is the only thing they can deal with.

She asked so I cannot have these awnings? Carey explained that she has the chance to present her case and then the board will consider and determine the fate of the said awnings.

She asked is there any way that the board ever considers public safety which has not been considered in the writing and adopting of the ordinances?

Bridges: What you have done is added a roof above a porch and in Michigan that just is not enough to make it safe without enclosing it. You will have the same amount of snow on that porch with or without the awning. The only way you can deal with the setback issue is to move your entire structure. So what you have to deal with is what you have. The nonconformity issue is what you have and the ordinance makes it pretty clear what you can and cannot do. Technically nonconformity is there as existing when the ordinances were written and the only thing you can do is leave it as it is unless you bring it up to code to conform with the setbacks.

Carey: To clarify, you can change your windows, roof, and doors, but you cannot change the structure itself.

Bridges: You can replace, for example, a window with a more efficient one without changing the structure.

Perry: So that is what I did? Bridges: No, you added things that were not there when the zoning ordinance went into effect.

Engelhardt: If you need to replace your roof or put on siding, you need to contact the building inspector.

Perry: So if I put up eaves troughs, I need a building permit?

Engelhardt: No, we don't require a permit for that.

**ZBA Members Comments & Questions**:

McCaslin: I am not seeing how large the awnings are. Perry stated the dimensions. McCaslin: My fear is that with a heavy snowfall they would collapse. If you don't keep snow off the awnings, there is a good possibility that they could come down. As a non-permanent resident, if you weren't here when it happened they could collapse. Is there any type of non-permanent awning that she could use while she is here? Administrator Carey: There are, but they are considered structures so she could not use them either.

Smith: Had you filed for a zoning permit and gotten a building permit ahead of time, the sizes and strength of the structures would have been looked at and regulated. We don't know if they are structurally sound or not. Now we have some structures put there without any oversight for safety measures.

Engelhardt: I have no problem with the aesthetics of your awnings, but the nonconformity is at issue here.

Godau: I am tickled to live in a zoned community because the environment can only be improved with the zoning. People need to be aware of what the zoning does for us. We are charged with the responsibility to consider your safety but also how it applies to all others in the entire community.

Smith: I would strongly recommend with the changes you are anticipating to your current decks with benches and a ramp and other improvements that you work with the building inspector and the zoning administrator before you begin.

Bridges stated that with all the regulations and requirements governing the construction of handicap ramps, Mrs. Perry needs to educate herself before she begins and make sure that she puts it in properly. Administrator Carey offered to send her the information from the Internet.

**Public Comment**:
Chair Godau stated that there were about 18 notices sent out and 3 comments were returned. He explained that although the comments are read by the board, they are not allowed to influence the board's decision.

Jack Abbott: Since Mrs. Perry has bought her property she has cleaned it up and made it a positive improvement to the surrounding area. He hopes that Lincoln Twp. will not discourage homeowners from improving their property. He feels that there is a gray area in this case. He stated support for the board to approve the existing structures and allow this variance.

**ZBA Members Comments & Questions**:
No further comments or questions from the board members.

**Public Hearing Closed by Chair**: 8:18 pm

**Closed Hearing is called to Order by Chair**: 8:18 pm

**Discussion and Further Questions by ZBA Members**:
None

**Closed Session is Closed by Chair**: 8:27 pm

**Open Meeting Reconvened by Chair**: 8:27 pm
No further questions

**Finding of Fact:** The board finalized their finding of facts and turned them in to Chair Godau to compile.

**Final Decision**: Godau requested a motion from the board. Smith made a motion to deny the requested variance for the awnings/roofs over existing decks on a nonconforming structure at 1490 Bungo Trail, Lake George, Michigan. Nonconforming addition must be corrected within 90 days. McCaslin seconded.

Godau explained that this motion requires a *yea* or *nay* in support of the motion.

**Roll Call Vote**:
Godau: **Yea**; Bridges: **Yea**; Engelhardt: **Yea**; McCaslin Yea; Smith: **Yea**
Motion passes to deny the variance: 5 Yeas; 0 Nays. Variance is Denied.

Annual organizational meeting will be held on Wednesday, April 8, 2015 at 7:00 pm.

**Adjournment**: Engelhardt moved to adjourn; McCaslin seconded. Motion passed with all in favor. Meeting adjourned at ~~5:50~~ 8:50 pm.

Respectfully Submitted,

Deborah L. Sherrod, Recording Secretary

**Attachment #1 (Zoning Administrator's Report)**

On 11/18/14 I received a complaint that the owner of the property at 1490 Bungo Tr. had added a roof to their deck in violation of our Zoning Ordinance as she had not applied for a Zoning Permit. On 11/20/14 I notified Lorraine Perry that her roofs over her decks were in violation of or Zoning Ordinance, no Zoning Permit was issued. They were also in violation as our ordinance says: Section 1300 Purpose, Section 1512 Paragraph 1 Intent and Paragraph 4a Non-conforming Structure all say pretty much the same, no structure shall be erected, nor shall an existing building be altered or enlarged unless it conforms with the minimum setback requirements established for each district of this ordinance.

The ZBA should grant a variance from the township's zoning laws only after the property in question meets stringent tests described in the zoning ordinance. Only the rarest situations should qualify for relief from the zoning ordinance's requirements because the zoning regulations are ultimately intended to protect the general health, safety and welfare of the township.
Practical Difficulty: Lincoln Township has a set of criteria an applicant must meet to be allowed a Variance. An applicant must meet each of the 5 criteria's for a variance, not 4 or 3, all 5 practical difficulties. Michigan appellate court has held that the Zoning Board of Appeals cannot grant a Variance without substantial evidence of all 5 practical difficulties. The Michigan Court of Appeals has also adopted the following factor, whether compliance with the strict letter of the restrictions governing area, setbacks, frontage, height, bulk or density would unreasonably prevent the owner from using the property for a permitted purpose. This property can be used for its permitted purpose.

For number one Mrs. Perry says she doesn't feel this applies as she has not increased her non-conformity. By adding the roofs/awnings she has increased her non-conforming structure. She provides no Practical Difficulty.

For number two Mrs. Perry says this does not apply to her and she quotes Page 56, Section 1512, Paragraph 3a. This paragraph applies to, non-conforming uses of land. Mrs. Perry violated Page 56, Section 1512, Paragraph 4a, which says: No such nonconforming structure may be enlarged or altered in a way which increases its nonconformity. There is no Unique Situation.

Number three, Mrs. Perry provides no Substantial Justice.

Number four Mrs. Perry says, she didn't increase her non-conformity. She did increase her non-conforming structure by adding roofs/awnings. There was no practical difficulty as Mrs. Perry bought the property this way, nothing changed on the property, this issue was self-created and is not a practical difficulty.

Number five, minimum variance necessary, there is no Practical Difficulty so this also does not apply.